Galveston County District Court

Cause No. 2024-CV-0024

Richard Smith, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	November 4, 2024
Plaintiff's counsel:	Kyle Sanders, Marshall & Dominguez LLP

PARTIES

Plaintiff Richard Smith is an individual residing in Texas who was the driver and sole occupant of a passenger vehicle involved in the collision described below. Defendant is an automobile insurance company authorized to write policies in the State of Texas, which issued the liability and uninsured/underinsured motorist coverage under which Palintiff now seeks recovery. Defendant may be served through its registered agent in accordance with the Texas Rules of Civil Procedure.

FACTS

On February 23, 2024, Plaintiff was lawfully operating his vehicle on a roadway in League City, Texas, traveling in the lane he was entitled to occupy. An insured driver operating a vehicle in the adjacent lane attempted to change lanes without first confirming that the lane was clear. The insured vehicle moved into Plaintiff's lane and sideswiped the side of Plaintiff's vehicle, forcing it toward the shoulder and causing body and frame damage. Plaintiff did not have a reasonable opportunity to avoid the impact. Plaintiff reported the collision to Defendant and submitted a claim under the applicable coverage.

NEGLIGENCE

The insured driver owed Plaintiff and other motorists a duty to exercise ordinary care when changing lanes, including checking mirrors, signaling, and confirming that the movement could be made safely. The insured driver breached that duty by changing lanes into an occupied lane. Defendant, as the insurer responsible for indemnifying its insured and for evaluating coverage for Plaintiff's losses, has a duty to handle the claim in good faith and in compliance with the Texas Insurance Code, and Plaintiff alleges that Defendant has failed to do so by delaying and undervaluing the claim.

DAMAGES

As a direct result of the collision, Plaintiff suffered a neck strain and a back strain, with pain, stiffness, limited range of motion, and headaches. Plaintiff has incurred medical expenses for examination and treatment and has lost time from work and daily activities. Plaintiff will likely continue to experience pain and reduced function in the future. Plaintiff seeks actual damages, including past and future medical expenses, lost earnings, property damage, pain and metnal anguish, and such other relief as the Court deems just, in an amount of $32,000.00.